

Soran Singh v. State of U.P. and another

High Court of Judicature at Allahabad · Division Bench · 16 April 2018 · Writ-C No. 13760 of 2018 · **Writ dismissed; petitioner relegated to clause 6.5**

HEADNOTE

A writ seeking quashing of a notice alleging an incorrect electricity bill is not entertained where the controversy turns on disputed questions of fact. Recourse lies under clause 6.5 of the Electricity Supply Code, 2005. If the consumer approaches the appropriate authority, the application is to be considered in accordance with law.

FACTUAL SUMMARY

Soran Singh petitioned the Allahabad High Court to quash a notice dated 1 November 2017 issued by respondent no. 2, alleging that the electricity bill was incorrect. The respondents were the State of Uttar Pradesh and another. Counsel for the petitioner was Tirth Raj Gupta; the State was represented by the Chief Standing Counsel and Baleshwar Chaturvedi. The Division Bench treated the controversy as involving disputed questions of fact about the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

incorrect bill — alternative remedy

HOLDING

A writ petition seeking quashing of a notice alleging an incorrect electricity bill will not be entertained where the controversy involves disputed questions of fact; the consumer must take the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005. An application to the appropriate authority may be considered in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ seeking quashing of a notice alleging an incorrect electricity bill is not entertained where the controversy turns on disputed questions of fact. Recourse lies under clause 6.5 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NOTICE DATED 01.11.2017 OR THE UNDERLYING BILL WAS INCORRECT

Merits left to the clause 6.5 authority ¶ 1